

22CMCV00266 22CMCV00266

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-26

Motion: DISTRICT'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

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Case Number: 22CMCV00266 Hearing Date: June 26, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JOHN DOE,

Plaintiff,

vs.

DOE # 1,

et al.,

Defendants.

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CASE NO: 22CMCV00266

[TENTATIVE]

ORDER RE: DISTRICT'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE,
SUMMARY ADJUDICATION

Dept.

A

DATE:

June 26, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 08/08/2022

TRIAL:

08/24/2026

MOVING PARTY: Defendant
Compton Unified School District

RESPONDING PARTY: Plaintiff
John Doe

1. Background

This is a childhood sexual assault revival action filed pursuant to Code of Civil Procedure § 340.1. Plaintiff John Doe ("Plaintiff") alleges that between 1983 and 1986, he was a student at Ralph Bunche Elementary School ("Bunche"), a school within Compton Unified School District ("District"). Plaintiff alleges that during this time period, he was sexually abused by James Lawrence, a teacher employed at Bunche. Plaintiff alleges that District knew or should have known of Plaintiff's abuse by Lawrence, and that District was negligent in failing to prevent the abuse.

2. Evidentiary Objections

District objects to portions of the declaration of Robert Fraisse. The court sustains the following objections: 1, 2, 3, 4, 5, 6, 8, 9, 10, 11, 12, 13, 14, 15, 16. The court overrules the following objections: 7.

3. Discussion

District moves for summary judgment, or in the alternative, summary adjudication. District contends that Education Code § 44808 bars Plaintiff's claims against District, as the alleged abuse occurred entirely off-campus and not during school hours. District also contends that there is no evidence that any employee of District had notice of Plaintiff's abuse or Lawrence's dangerous propensities. In opposition, Plaintiff contends that employees of District knew that Lawrence was interacting with students outside school hours, which should have provided notice that there was a likelihood of sexual abuse. Plaintiff also contends that some sexual abuse took place on campus and during school hours.

On
May 29, 2026, District filed a reply separate statement prohibited under Code

of Civil Procedure § 437c, subd. (b)(4). The court will therefore not consider it.

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843 (Aguilar).)

“Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.”

(Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant or cross-defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

“Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ.

Proc., § 437c, subd. (p)(2).) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) “When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code Civ. Proc., § 437c, subd. (c).)

To establish a triable issue of material fact, the party opposing the motion must

produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion. (*Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1271.)

a. Education Code § 44808

Under California Education Code § 44808, a school district is not liable for the conduct or safety of a student when that student is not on school property unless the school district has specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances. Liability is limited for after-hours, off-campus activity absent a specific undertaking by the school during which a student is injured. (*LeRoy v. Yarboi* (2021) 71 Cal.App.5th 737, 743.) However, a school may be liable for injuries suffered off-campus, after hours, or otherwise away from the school's premises if the injury resulted from the school's negligence that occurred on the school's premises. (*Perna v. Conejo Valley Unified School Dist.* (1983) 143 Cal.App.3d 292, 295; *Bassett v. Lakeside Inn, Inc.* (2006) 140 Cal.App.4th 863, 870.)

District

contends that it is immune from liability for the sexual abuse that occurred off-campus under California Education Code, § 44808. However, Plaintiff has testified that, although the majority of sexual abuse took place off-campus at Lawrence's private cabin, Lawrence touched and rubbed Plaintiff on his legs and near his groin while at school. (Pltf. Decl., 54:21 – 55:5.)

Under

California Penal Code § 288, any "lewd or lascivious act" willfully committed upon a child under the age of 14 years with the intent of arousing, appealing to, or gratifying the lust, passions, or sexual desires of that person or the child is a felony, and is included in the definition of "childhood sexual assault" under Code of Civil Procedure § 340.1, subd. (c). Penal Code § 288 prohibits all forms of sexually motivated contact with an underage child, irrespective of the form of the touching. (*In re R.C.* (2011) 196 Cal.App.4th 741, 749.)

Although

there is no direct evidence of Lawrence's intent in touching and rubbing Plaintiff while at school, in light of Plaintiff's allegations and testimony that Lawrence sexually abused Plaintiff while off campus (Pltf. Depo. 46:16 –

47:1), a reasonable trier of fact could conclude that intent of arousing, appealing to, or gratifying his sexual desires by touching or rubbing Plaintiff's body while at school.

District has failed to meet its burden to demonstrate that there are no triable issues of material fact as to whether Lawrence sexually abused Plaintiff on campus. District is therefore not immunized from liability under Education Code § 44808 at the summary judgment stage.

b. Negligence

“To establish negligent supervision [of an employee], a plaintiff must show that a person in supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act.” (Y.P. v. Wells Fargo Company (2026) 119 Cal.App.5th 1069, 1088.) “Unless the individual alleged to be negligent in a hiring or retention decision knew or should have known of the dangerous propensities of the employee who injured the plaintiff, there is little or no moral blame attached to the person's action or inaction.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 878.)

District contends that Plaintiff's third cause of action for negligence fails as a matter of law because Plaintiff lacks evidence that a specific District supervisory or administrative employee knew or had reason to know of Lawrence's alleged dangerous propensities or that he was prone to harm Plaintiff.

District contends that Plaintiff was not aware of any complaints about Lawrence and cannot identify any District employee who knew or should have known that Lawrence engaged in sexual abuse of students. (Pltf. Depo. 52:5 – 52:19; Steffy Decl., Ex. 4.) Plaintiff's discovery responses are devoid of facts showing that District or any of its employees had notice of any abuse committed by Lawrence or that any complaints were made about Lawrence. A defendant may rely on factually devoid discovery responses to shift the burden of proof on a motion for summary judgment. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590.)

District has therefore carried its burden to show that there are no triable issues of fact as to its liability for negligence or

negligent hiring, supervision, or retention of Lawrence. The burden now shifts to Plaintiff.

In opposition, Plaintiff contends that District was placed on notice of Lawrence's dangerous propensities because supervisory and administrative employees had knowledge that Lawrence was spending significant time with students outside of regular school hours. In support of this contention, Plaintiff provides Lawrence's personnel file, which includes a page commending Lawrence for working with his students seven days a week and another page commending him for taking his students to "various shows, games, [and] points of interest." (Shakh Decl., Ex. 2.) However, a reasonable trier of fact could not reasonably find that this was sufficient to create reasonable suspicion of child abuse. Although Plaintiff provides the expert declaration of Robert Fraisse, stating that this constituted improper contact with students that created a reasonable suspicion of child abuse, these statements within Fraisse's declaration are inadmissible.

Plaintiff also provides Lawrence's personnel file for the proposition that Lawrence engaged in misconduct and that supervisory employees were aware. However, the misconduct stated in Lawrence's personnel file concerns his failure to return textbooks and school materials that Lawrence took home and faculty concerns about Lawrence carrying a tape recorder to staff meetings. This conduct has no relation to any child abuse, and no reasonable trier of fact would find that it placed District or any of its employees on notice of Lawrence's dangerous propensities.

Plaintiff has therefore failed to carry his burden to show that there is a triable issue of material fact as to District's liability for negligence.

c. Failure to report suspected child abuse

A mandated reporter has a duty to report suspected child abuse when they have knowledge of or observe a child that they know or reasonably suspect has been the victim of child abuse or neglect. (Doe v. Lawndale Elementary School Dist. (2021) 72 Cal.App.5th 113, 138.)

District contends that there are no triable issues of material fact because there is no evidence that District had reasonable suspicion of child abuse relating to Plaintiff. In support of this contention,

District once again provides Plaintiff's testimony stating that he was not aware of any complaints about Lawrence and cannot identify any District employee who knew or should have known that Lawrence engaged in sexual abuse of students. (Pltf. Depo. 52:5 – 52:19; Steffy Decl., Ex. 4.)

This cause of action relates specifically to Plaintiff's circumstances, rather than to Lawrence more generally, and therefore Plaintiff's testimony that he was unaware of any complaints being lodged against Lawrence, in addition to his factually devoid discovery responses, are sufficient to establish that there are no triable issues of material fact as to whether Plaintiff or any person associated with Plaintiff lodged a complaint against Lawrence with respect to Lawrence's sexual abuse of Plaintiff. In the absence of such a complaint, and in the absence of the identification of any employee who knew or reasonably suspected that Lawrence was abusing Plaintiff, there are no triable issues of material fact as to this cause of action.

District has therefore carried its burden to show that there are no triable issues of material fact as to its liability for failure to report suspected child abuse. The burden now passes to Plaintiff.

In opposition, Plaintiff contends that District was placed on notice of Lawrence's dangerous propensities because supervisory and administrative employees had knowledge that Lawrence was spending significant time with students outside of regular school hours. In support of this contention, Plaintiff provides Lawrence's personnel file, which includes a page commending Lawrence for working with his students seven days a week and another page commending him for taking his students to "various shows, games, [and] points of interest," as well as a page noting that Lawrence made home visitations within his adjunct responsibilities. (Shakh Decl., Ex. 2.) However, a reasonable trier of fact could not reasonably find that this was sufficient to create reasonable suspicion of child abuse.

Although Plaintiff provides the expert declaration of Robert Fraisse, stating that this constituted improper contact with students that created a reasonable suspicion of child abuse, these statements within Fraisse's declaration are inadmissible as legal conclusions. Plaintiff does not otherwise provide any evidence that any employees of district knew or had reasonable suspicion, or should have had reasonable suspicion, that Lawrence was abusing Plaintiff.

Plaintiff has therefore failed to carry his burden to show that there is a triable issue of material fact as to District's liability for failure to report suspected child abuse.

d. Negligent supervision of a minor

"It is the duty of the school authorities to supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection. [Citations.] The school district is liable for injuries which result from a failure of its officers and employees to use ordinary care in this respect. [Citations.]" (Taylor v. Oakland Scavenger Co. (1941) 17 Cal.2d 594, 600.)

District contends that there are no triable issues of material fact because there is no evidence that District had reasonable suspicion of child abuse relating to Plaintiff. In support of this contention, District once again provides Plaintiff's testimony stating that he was not aware of any complaints about Lawrence and cannot identify any District employee who knew or should have known that Lawrence engaged in sexual abuse of students. (Pltf. Depo. 52:5 – 52:19; Steffy Decl., Ex. 4.)

As previously noted, Plaintiff's discovery responses are devoid of any facts showing that District had notice of Lawrence's dangerous propensities or any abuse committed by Lawrence. This is sufficient to carry District's burden and shift the burden to Plaintiff.

In opposition, Plaintiff contends that District was placed on notice of Lawrence's dangerous propensities because supervisory and administrative employees had knowledge that Lawrence was spending significant time with students outside of regular school hours. In support of this contention, Plaintiff provides Lawrence's personnel file, which includes a page commending Lawrence for working with his students seven days a week and another page commending him for taking his students to "various shows, games, [and] points of interest," as well as a page noting that Lawrence made home visitations within his adjunct responsibilities. (Shakh Decl., Ex. 2.) However, a reasonable trier of fact could not reasonably find that this was sufficient to create reasonable suspicion of child abuse.

Although Plaintiff provides the expert declaration of Robert Fraisse, stating that this constituted improper contact with students that created a reasonable suspicion of child abuse, these statements within Fraisse's declaration are inadmissible as legal conclusions. Plaintiff does not otherwise provide any evidence that any employees of district knew or had reasonable suspicion, or should have had reasonable suspicion, that Lawrence was abusing Plaintiff. Plaintiff also does not provide any evidence that any specifically identifiable employees of district failed to adequately supervise Plaintiff or protect Plaintiff from on-campus or off-campus sexual abuse. In order to hold an employer vicariously liable, a plaintiff must provide evidence establishing that some specific employee in the scope of employment committed the wrongful act, which requires the plaintiff to at least be able to identify that a specific employee committed the wrongful act. (See *Perez v. City of Huntington Park* (1992) 7 Cal.App.4th 817, 820-821.)

Here, Plaintiff has provided evidence that specific employees were aware that Lawrence took students on extracurricular trips; however, as previously noted, no reasonable trier of fact could find that this creates a triable issue of material fact as to whether the employees had or should have had notice or reasonable suspicion of abuse. Correspondingly, this evidence does not show that any employee of District failed to exercise reasonable care in supervising Plaintiff, as foreseeability of risk of harm is a required factor of negligence. (*Woolard v. Regent Real Estate Services, Inc.* (2024) 107 Cal.App.5th 783, 791.)

Plaintiff has therefore failed to carry his burden to show that there is a triable issue of material fact as to District's liability for negligent supervision of a minor.

As Plaintiff has failed to demonstrate that there are any triable issues of material fact as to the three causes of action directed towards District, the court will grant District's motion for summary judgment.

4. Conclusion

Based on the foregoing, the court GRANTS District's motion for summary judgment.

District
is ordered to file a proposed order on form JUD-100 and give notice.

IT
IS SO ORDERED.

DATED: June 26, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court